VANCOUVER SCHOOL DISTRICT NO. 37
CLARK COUNTY, WASHINGTON

UNLIMITED TAX GENERAL OBLIGATION BONDS, 2021

RESOLUTION NO. 872

A RESOLUTION OF THE BOARD OF DIRECTORS OF VANCOUVER SCHOOL DISTRICT NO. 37, CLARK COUNTY, WASHINGTON, AUTHORIZING THE ISSUANCE AND SALE OF GENERAL OBLIGATION BONDS OF THE DISTRICT IN THE AGGREGATE PRINCIPAL AMOUNT OF NOT TO EXCEED $93,000,000 FOR THE PURPOSE OF PROVIDING FUNDS TO CONSTRUCT, EQUIP, RENOVATE AND MAKE CERTAIN CAPITAL IMPROVEMENTS TO THE FACILITIES OF THE DISTRICT AS AUTHORIZED BY RESOLUTION OF THE BOARD OF DIRECTORS AND APPROVED BY THE QUALIFIED ELECTORS OF THE DISTRICT AT A SPECIAL ELECTION HELD THEREIN ON FEBRUARY 14, 2017; PROVIDING FOR TAX LEVIES TO PAY THE PRINCIPAL THEREOF AND INTEREST THEREON; AND DELEGATING TO THE SUPERINTENDENT AND/OR CHIEF OPERATING OFFICER OF THE DISTRICT THE AUTHORITY TO APPROVE THE INTEREST RATES, MATURITY DATES AND PRINCIPAL MATURITIES FOR THE BONDS UNDER THE TERMS AND CONDITIONS SET FORTH HEREIN.

APPROVED ON JANUARY 12, 2021

PREPARED BY:

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VANCOUVER SCHOOL DISTRICT NO. 37

RESOLUTION NO. 872

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* This Table of Contents and the cover page are not a part of the following resolution and are included only for the convenience of the reader.

RESOLUTION NO. 872

A RESOLUTION OF THE BOARD OF DIRECTORS OF VANCOUVER SCHOOL DISTRICT NO. 37, CLARK COUNTY, WASHINGTON, AUTHORIZING THE ISSUANCE AND SALE OF GENERAL OBLIGATION BONDS OF THE DISTRICT IN THE AGGREGATE PRINCIPAL AMOUNT OF NOT TO EXCEED $93,000,000 FOR THE PURPOSE OF PROVIDING FUNDS TO CONSTRUCT, EQUIP, RENOVATE AND MAKE CERTAIN CAPITAL IMPROVEMENTS TO THE FACILITIES OF THE DISTRICT AS AUTHORIZED BY RESOLUTION OF THE BOARD OF DIRECTORS AND APPROVED BY THE QUALIFIED ELECTORS OF THE DISTRICT AT A SPECIAL ELECTION HELD THEREIN ON FEBRUARY 14, 2017; PROVIDING FOR TAX LEVIES TO PAY THE PRINCIPAL THEREOF AND INTEREST THEREON; AND DELEGATING TO THE SUPERINTENDENT AND/OR CHIEF OPERATING OFFICER OF THE DISTRICT THE AUTHORITY TO APPROVE THE INTEREST RATES, MATURITY DATES AND PRINCIPAL MATURITIES FOR THE BONDS UNDER THE TERMS AND CONDITIONS SET FORTH HEREIN.

WHEREAS, at an election held in Vancouver School District No. 37, Clark County, Washington (the "District") on February 14, 2017, the number and proportion of the qualified electors of the District required by law for the adoption thereof voted in favor of a proposition authorizing the issuance of bonds of the District in the aggregate principal amount of $458,000,000 (the "Bond Authorization") to provide the funds to construct, equip, renovate and make certain capital improvements to the facilities of the District as authorized by Resolution No. 772, adopted on November 8, 2016 (the "Election Resolution") by the Board of Directors of the District (the "Board"); and

WHEREAS, pursuant to the Bond Authorization and Resolution No. 777, adopted on March 28, 2017, the District issued its Unlimited Tax General Obligation Bonds, 2017, and deposited into the District's Capital Projects Fund a portion of the sale proceeds thereof, in the

amount $70,000,000 (consisting of the par amount of $59,310,000 plus original issue premium of $10,690,000); and

WHEREAS, pursuant to the Bond Authorization and Resolution No. 810, adopted on September 11, 2018, the District issued its Unlimited Tax General Obligation Bonds, 2018 and deposited into the District's Capital Projects Fund a portion of the sale of the proceeds thereof, in the amount of $120,000,000 (consisting of the par amount of $109,725,000 plus original issue premium of $10,275,000); and

WHEREAS, pursuant to the Bond Authorization and Resolution No. 834, adopted on June 11, 2019, the District issued its Unlimited Tax General Obligation Bonds, 2019 and deposited into the District's Capital Projects Fund a portion of the sale of the proceeds thereof, in the amount of $175,000,000 (consisting of the par amount of $152,850,000 plus original issue premium of $22,150,000); and

WHEREAS, it is deemed necessary and advisable that the District now issue and sell the fourth and final series of such authorized bonds, in the aggregate principal amount not to exceed $93,000,000 (the "Bonds"), to provide part of the funds necessary to construct, equip, renovate and make certain capital improvements to the facilities of the District approved in the Election Resolution; and

WHEREAS, as authorized by RCW 39.46.040, the Board wishes to delegate authority to the Superintendent and Chief Operating Officer of the District (each, a "Designated Representative"), for a limited time, to approve the interest rates, maturity dates, redemption terms and principal maturities for the Bonds under such terms and conditions as are approved by this resolution; and

WHEREAS, the Bonds shall be sold by negotiated sale as provided herein;

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF DIRECTORS OF VANCOUVER SCHOOL DISTRICT NO. 37, CLARK COUNTY, WASHINGTON, as follows:

Section 1. Definitions.

As used in this resolution, the following words shall have the following meanings:

Beneficial Owner means the beneficial owner of all or a portion of a Bond while such Bond is in fully immobilized form.

Board of Directors or ***Board*** means the Board of Directors of the District as the same shall be duly and regularly constituted from time to time.

Bond Authorization means the unlimited tax general obligation bonds in the aggregate principal amount of $458,000,000 authorized by the Election Resolution and approved by the requisite number of voters of the District at a special election held on February 14, 2017 for the purpose of providing the funds necessary to carry out the Projects and to pay the costs of issuance of such bonds.

Bond Counsel means Pacifica Law Group LLP or an attorney at law or a firm of attorneys, selected by the District, of nationally recognized standing in matters pertaining to the tax exempt nature of interest on bonds issued by states and their political subdivisions.

Bond Register means the registration books maintained by the Bond Registrar setting forth the names and addresses of owners of the Bonds in compliance with Section 149 of the Code.

Bond Registrar means, with respect to the Bonds, the registrar appointed from time to time by the Treasurer, initially, the fiscal agent of the State, for the purposes of registering and authenticating the Bonds, maintaining the Bond Register, effecting transfer of ownership of the Bonds and paying interest on and principal of the Bonds.

Bonds means the Vancouver School District No. 37, Clark County, Washington, Unlimited Tax General Obligation Bonds, 2021, to be issued in the aggregate principal amount not to exceed $93,000,000 pursuant to this resolution.

Capital Projects Fund means the special fund of the District established pursuant to RCW 28A.320.330(2), into which fund certain proceeds of the Bonds shall be deposited.

Chief Operating Officer means the duly appointed Chief Operating Officer of the District or the successor to the duties of such office.

Closing means the date of delivery of the Bonds to the Underwriters.

Code means the Internal Revenue Code of 1986 as in effect on the date of issuance of the Bonds or (except as otherwise referenced herein) as it may be amended to apply to obligations issued on the date of issuance of the Bonds, together with applicable proposed, temporary and final regulations promulgated, and applicable official public guidance published, under the Code.

Commission means the United States Securities and Exchange Commission.

Continuing Disclosure Certificate means the written undertaking for the benefit of the owners and Beneficial Owners of the Bonds as required by Section (b)(5) of the Rule.

Credit Enhancement Program means the program for enhancing the credit of voter-approved school district general obligation bonds established pursuant to chapter 39.98 RCW.

Debt Service Fund means the special fund of the District of that name created in the office of the Treasurer pursuant to RCW 28A.320.330.

Designated Representative means the Superintendent and Chief Operating Officer of the District. The signature of one Designated Representative shall be sufficient to bind the District.

District means Vancouver School District No. 37, Clark County, Washington, a municipal corporation duly organized and existing under and by virtue of the laws of the State.

DTC means The Depository Trust Company of New York, New York, as the initial depository for the Bonds, or any successor depository for the Bonds.

Election Resolution means Resolution No. 772 adopted by the Board on November 8, 2016.

Fair Market Value means the price at which a willing buyer would purchase an investment from a willing seller in a bona fide, arm's length transaction, except for specified investments as described in Treasury Regulation § 1.148-5(d)(6), including United States Treasury obligations, certificates of deposit, guaranteed investment contracts, and investments for yield restricted defeasance escrows. Fair Market Value is generally determined on the date on which a contract to purchase or sell an investment becomes binding, and, to the extent required by the applicable regulations under the Code, the term "investment" will include a hedge.

Federal Tax Certificate means the certificate executed by the District setting forth the requirements of the Code for maintaining the tax exemption of interest on the Bonds, and attachments thereto.

Financial Advisor means Educational Service District No. 112, Financial Advisory Services, or its successor.

Government Obligations means those obligations now or hereafter defined as such in chapter 39.53 RCW constituting direct obligations of, or obligations the principal of and interest on which are unconditionally guaranteed by the United States of America, as such chapter may be hereafter amended or restated.

Issue Date means the first date on which the District receives the purchase price in exchange for delivery of the evidence of indebtedness representing any of the Bonds.

Letter of Representations means the Blanket Issuer Letter of Representations from the District to DTC.

MSRB means the Municipal Securities Rulemaking Board or any successors to its functions.

Official Statement means the disclosure documents prepared and delivered in connection with the issuance of the Bonds.

Projects mean the construction, equipping, renovation and improvement of the facilities of the District, as authorized and more particularly described in the Election Resolution.

Purchase Contract means the bond purchase agreement between the District and the Underwriters, or a representative of the Underwriters, provided for in Section 11 of this resolution.

Record Date means the Bond Registrar's close of business on the 15th day of the month preceding an interest payment date. With respect to redemption of a Bond prior to its maturity, the Record Date shall mean the Bond Registrar's close of business on the date on which the Bond Registrar sends the notice of redemption in accordance with this resolution.

Registered Owner means the person in whose name a Bond is registered on the Bond Register. For so long as the District utilizes the book-entry system for the Bonds, DTC shall be deemed to be the sole Registered Owner.

Rule means the Commission's Rule 15c2-12 under the Securities Exchange Act of 1934, as amended from time to time.

State means the State of Washington.

State Treasurer means the Treasurer of the State, or any successor to the functions thereof.

Superintendent means the duly appointed and acting Superintendent of the District or the successor to the duties of such office.

Treasurer means the Clark County Treasurer, as *ex officio* treasurer of the District, or any successor to the functions of the Treasurer.

Underwriters means, collectively, Piper Sandler & Co. and D.A. Davidson & Co., and any other initial purchaser or purchasers of the Bonds as selected by a Designated Representative, or their successors.

Rules of Interpretation. In this resolution, unless the context otherwise requires:

(a) The terms "hereby," "hereof," "hereto," "herein," "hereunder" and any similar terms, as used in this resolution, refer to this resolution as a whole and not to any particular article, section, subdivision or clause hereof, and the term "hereafter" shall mean after, and the term "heretofore" shall mean before, the date of this resolution;

(b) Words of any gender shall mean and include correlative words of all genders, and words importing the singular number shall mean and include the plural number and vice versa;

(c) Words importing persons shall include firms, associations, partnerships (including limited partnerships), trusts, corporations and other legal entities, including public bodies, as well as natural persons;

(d) Any headings preceding the text of the several articles and sections of this resolution, and any table of contents or marginal notes appended to copies hereof, shall be solely for convenience of reference and shall not constitute a part of this resolution, nor shall they affect its meaning, construction or effect; and

(e) All references herein to "articles," "sections" and other subdivisions or clauses are to the corresponding articles, sections, subdivisions or clauses hereof.

Section 2. Authorization of Bonds.

The District shall now issue and sell unlimited tax general obligation bonds authorized in the aggregate principal amount of not to exceed $93,000,000 (the "Bonds"), authorized by the qualified electors of the District at a special election held on February 14, 2017, for the purpose of providing the funds required to construct, equip, renovate and make other capital improvements to facilities of the District as authorized by the Election Resolution (the "Projects").

The Bonds shall be designated as the "Vancouver School District No. 37, Clark County, Washington, Unlimited Tax General Obligation Bonds, 2021", or other such designation as set forth in the Purchase Contract, shall be dated as of the date of their initial delivery, shall be fully registered as to both principal and interest, shall be in the denomination of $5,000 each or any integral multiple thereof within a single maturity, provided that no Bond shall represent more than one maturity, shall be numbered separately in such manner and with any additional designation as the Bond Registrar deems necessary for purposes of identification and control, and shall bear interest payable semiannually on the first days of December and June, commencing on the interest payment date and at the rates set forth in the Purchase Contract; and shall mature on the dates and in the principal amounts set forth in the Purchase Contract and as approved by a Designated Representative pursuant to Section 11. The Bonds of any maturities may be combined and issued as term bonds, subject to mandatory redemption as provided in the Purchase Contract.

Section 3. Registration, Payment and Transfer.

(a) *Bond Registrar/Bond Register*. The District hereby requests that the Treasurer specify and adopt the system of registration and transfer for the Bonds approved by the State Finance Committee from time to time through the appointment of a state fiscal agent. The District shall cause a bond register to be maintained by the Bond Registrar. So long as any Bonds remain

outstanding, the Bond Registrar shall make all necessary provisions to permit the exchange or registration or transfer of Bonds at its principal corporate trust office. The Bond Registrar may be removed at any time at the option of the Treasurer upon prior notice to the Bond Registrar and DTC, notice to the extent required by the Continuing Disclosure Certificate, and a successor Bond Registrar appointed by the Treasurer. No resignation or removal of the Bond Registrar shall be effective until a successor shall have been appointed and until the successor Bond Registrar shall have accepted the duties of the Bond Registrar hereunder. The Bond Registrar is authorized, on behalf of the District, to authenticate and deliver Bonds transferred or exchanged in accordance with the provisions of such Bonds and this resolution and to carry out all of the Bond Registrar's powers and duties under this resolution. The Bond Registrar shall be responsible for its representations contained in the Certificate of Authentication on the Bonds.

(b) *Registered Ownership.* The District and the Bond Registrar, each in its discretion, may deem and treat the Registered Owner of each Bond as the absolute owner thereof for all purposes (except as provided in the Continuing Disclosure Certificate), and neither the District nor the Bond Registrar shall be affected by any notice to the contrary. Payment of any such Bond shall be made only as described in Section 3(g) hereof, but such Bond may be transferred as herein provided. All such payments made as described in Section 3(g) shall be valid and shall satisfy and discharge the liability of the District upon such Bond to the extent of the amount or amounts so paid.

(c) *DTC Acceptance/Letter of Representations.* The District has executed and delivered to DTC a Letter of Representations. Neither the District nor the Bond Registrar will have any responsibility or obligation to DTC participants or the persons for whom they act as nominees (or any successor depository) with respect to the Bonds in respect of the accuracy of any records

maintained by DTC (or any successor depository) or any DTC participant, the payment by DTC (or any successor depository) or any DTC participant of any amount in respect of the principal of or interest on Bonds, any notice which is permitted or required to be given to Registered Owners under this resolution (except such notices as shall be required to be given by the District to the Bond Registrar or to DTC (or any successor depository)), or any consent given or other action taken by DTC (or any successor depository) as the Registered Owner. For so long as any Bonds are held in fully-immobilized form hereunder, DTC or its successor depository shall be deemed to be the Registered Owner for all purposes hereunder (except as provided in the Continuing Disclosure Certificate), and all references herein to the Registered Owners shall mean DTC (or any successor depository) or its nominee and shall not mean the owners of any beneficial interest in such Bonds.

If any Bond shall be duly presented for payment and funds have not been duly provided by the District on such applicable date, then interest shall continue to accrue thereafter on the unpaid principal thereof at the rate stated on such Bond until such Bond is paid.

(d) *Use* of *Depository.*

(1) The Bonds shall be registered initially in the name of "Cede & Co.", as nominee of DTC, with one Bond maturing on each of the maturity dates for the Bonds in a denomination corresponding to the total principal therein designated to mature on such date.

Registered ownership of such immobilized Bonds, or any portions thereof, may not thereafter be transferred except (A) to any successor of DTC or its nominee, provided that any such successor shall be qualified under any applicable laws to provide the service proposed to be provided by it; (B) to any substitute depository appointed by a Designated Representative pursuant

to subsection (2) below or such substitute depository's successor; or (C) to any person as provided in subsection (4) below.

(2) Upon the resignation of DTC or its successor (or any substitute depository or its successor) from its functions as depository or a determination by a Designated Representative to discontinue the system of book-entry transfers through DTC or its successor (or any substitute depository or its successor), a Designated Representative may hereafter appoint a substitute depository. Any such substitute depository shall be qualified under any applicable laws to provide the services proposed to be provided by it.

(3) In the case of any transfer pursuant to clause (A) or (B) of subsection (1) above, the Bond Registrar shall, upon receipt of all outstanding Bonds, together with a written request from a Designated Representative, issue a single new Bond for each maturity then outstanding, registered in the name of such successor or such substitute depository, or their nominees, as the case may be, all as specified in such written request of a Designated Representative.

(4) In the event that (A) DTC or its successor (or substitute depository or its successor) resigns from its functions as depository, and no substitute depository can be obtained, or (B) a Designated Representative determines that it is in the best interest of the Beneficial Owners of the Bonds that such owners be able to obtain such Bonds in the form of Bond certificates, the ownership of such Bonds may then be transferred to any person or entity as herein provided, and shall no longer be held in fully-immobilized form. A Designated Representative shall deliver a written request to the Bond Registrar, together with a supply of definitive Bonds, to issue Bonds as herein provided in any authorized denomination. Upon receipt by the Bond Registrar of all then outstanding Bonds together with a written request on behalf of the Board to

the Bond Registrar, new Bonds shall be issued in the appropriate denominations and registered in the names of such persons as are requested in such written request.

(e) *Registration of Transfer of Ownership or Exchange; Change in Denominations.* The transfer of any Bond may be registered and Bonds may be exchanged, but no transfer of any such Bond shall be valid unless such Bond is surrendered to the Bond Registrar with the assignment form appearing on such Bond duly executed by the Registered Owner or such Registered Owner's duly authorized agent in a manner satisfactory to the Bond Registrar. Upon such surrender, the Bond Registrar shall cancel the surrendered Bond and shall authenticate and deliver, without charge to the Registered Owner or transferee therefor, a new Bond (or Bonds at the option of the new Registered Owner) of the same date, maturity, redemption provisions and interest rate and for the same aggregate principal amount in any authorized denomination, naming as Registered Owner the person or persons listed as the assignee on the assignment form appearing on the surrendered Bond, in exchange for such surrendered and cancelled Bond. Any Bond may be surrendered to the Bond Registrar and exchanged, without charge, for an equal aggregate principal amount of Bonds of the same date, maturity, redemption provisions and interest rate, in any authorized denomination. The Bond Registrar shall not be obligated to exchange any Bond or transfer registered ownership during the period between the applicable Record Date and the next upcoming interest payment or redemption date.

(f) *Bond Registrar's Ownership of Bonds.* The Bond Registrar may become the Registered Owner of any Bond with the same rights it would have if it were not the Bond Registrar, and to the extent permitted by law, may act as depository for and permit any of its officers or directors to act as member of, or in any other capacity with respect to, any committee formed to protect the right of the Registered Owners of the Bonds.

(g) *Place and Medium of Payment.* Both principal of and interest on the Bonds shall be payable in lawful money of the United States of America. Interest on the Bonds shall be calculated on the basis of a year of 360 days and twelve 30-day months. For so long as all Bonds are held by a depository, payments of principal thereof and interest thereon shall be made as provided in accordance with the operational arrangements of DTC referred to in the Letter of Representations. In the event that the Bonds are no longer held by a depository, interest on the Bonds shall be paid by check or draft mailed to the Registered Owners at the addresses for such Registered Owners appearing on the Bond Register on the Record Date, or upon the written request of a Registered Owner of more than $1,000,000 of Bonds (received by the Bond Registrar at least by the Record Date), such payment shall be made by the Bond Registrar by wire transfer to the account within the United States designated by the Registered Owner. Principal of the Bonds shall be payable upon presentation and surrender of such Bonds by the Registered Owners at the designated office of the Bond Registrar.

If any Bond is duly presented for payment and funds have not been provided by the District on the applicable payment date, then interest will continue to accrue thereafter on the unpaid principal thereof at the rate stated on the Bond until the Bond is paid.

Section 4. Redemption and Purchase of Bonds.

(a) *Optional Redemption*. Each Designated Representative is authorized to designate all or a portion of the maturities of the Bonds as being subject to redemption at the option of the District prior to their respective maturities on the dates and at the prices set forth in the Purchase Contract; provided that the first optional redemption date of such Bonds shall be on or before the date that is 10½ years from the Issue Date. The Designated Representative may also designate all

or a portion of the maturities of the Bonds as not being subject to optional redemption as set forth in the Purchase Contract.

(b) *Mandatory Redemption.* In the event that the Underwriters specify one or more maturities as term bonds, the term bonds will be redeemed in accordance with the maturity schedule set forth in the Purchase Contract (unless such term bonds shall previously have been optionally redeemed).

(c) *Selection of Bonds for Redemption.* As long as the Bonds are held in book-entry only form, the selection of Bonds to be redeemed shall be made in accordance with the operational arrangements in effect at DTC. If the Bonds are no longer held in uncertificated form, the selection of such Bonds to be redeemed shall be made as provided in this subsection (c). If the District redeems at any one time fewer than all of the Bonds having the same maturity date, the particular Bonds or portions of Bonds of such maturity to be redeemed shall be selected by lot (or in such other manner determined by the Treasurer) in increments of $5,000. In the case of a Bond of a denomination greater than $5,000, the District and Bond Registrar shall treat each Bond as representing such number of separate Bonds each of the denomination of $5,000 as is obtained by dividing the actual principal amount of such Bond by $5,000. In the event that only a portion of the principal sum of a Bond is redeemed, upon surrender of such Bond at the principal office of the Bond Registrar there shall be issued to the Registered Owner, without charge therefor, for the then unredeemed balance of the principal sum thereof, at the option of the Registered Owner, a Bond or Bonds of like maturity and interest rate in any of the denominations herein authorized. If Bonds are called for optional redemption, portions of the principal amount of such Bonds, in installments of $5,000 or any integral multiple of $5,000, may be redeemed.

(d) *Purchase of Bonds.* The District also reserves the right to purchase any of the Bonds offered to the District at any time at a price deemed reasonable by the District.

(e) *Notice of Redemption*.

(1) Official Notice. For so long as the Bonds are held by a depository, notice of redemption shall be given in accordance with the operational arrangements of DTC as then in effect, and neither the District nor the Bond Registrar shall provide any notice of redemption to any Beneficial Owners. The notice of redemption may be conditional. If the Bonds are held in certificated form, unless waived by any Registered Owner of Bonds to be redeemed, official notice of any such redemption shall be given by the Bond Registrar on behalf of the District by mailing a copy of an official redemption notice by first class mail at least 20 days and not more than 60 days prior to the date fixed for redemption to the Registered Owner of the Bond or Bonds to be redeemed at the address shown on the Bond Register on the Record Date or at such other address as is furnished in writing by such Registered Owner to the Bond Registrar.

All official notices of redemption shall be dated and shall state:

(A) the redemption date,

(B) the redemption price,

(C) if fewer than all outstanding Bonds are to be redeemed, the identification by maturity (and, in the case of partial redemption, the respective principal amounts) of the Bonds to be redeemed,

(D) that (unless the notice of redemption is a conditional notice, in which case the notice shall state that interest shall cease to accrue from the redemption date if and to the extent that funds have been provided to the Bond Registrar for the redemption of Bonds) on the redemption date the redemption price will become due and payable upon each such Bond or

portion thereof called for redemption, and that interest thereon shall cease to accrue from and after said date, and

(E) the place where such Bonds are to be surrendered for payment of the redemption price, which place of payment shall be the principal office of the Bond Registrar.

On or prior to any redemption date, unless such redemption has been rescinded or revoked, the District shall deposit with the Bond Registrar an amount of money sufficient to pay the redemption price of all the Bonds or portions of Bonds which are to be redeemed on that date. The District retains the right to rescind any redemption notice and the related optional redemption of Bonds by giving notice of rescission to the affected Registered Owners at any time on or prior to the scheduled redemption date. Any notice of optional redemption that is so rescinded shall be of no effect, and the Bonds for which the notice of optional redemption has been rescinded shall remain outstanding.

(2) Effect of Notice; Bonds Due. If notice of redemption has been given and not rescinded or revoked, or if the conditions set forth in a conditional notice of redemption have been satisfied or waived, the Bonds or portions of Bonds to be redeemed shall, on the redemption date, become due and payable at the redemption price therein specified, and from and after such date (unless the District shall default in the payment of the redemption price) such Bonds or portions of Bonds shall cease to bear interest. Upon surrender of such Bonds for redemption in accordance with said notice, such Bonds shall be paid by the Bond Registrar at the redemption price. Installments of interest due on or prior to the redemption date shall be payable as herein provided for payment of interest. Upon surrender for any partial redemption of any Bond, there shall be prepared for the Registered Owner a new Bond or Bonds of the same series and maturity

in the amount of the unpaid principal. All Bonds which have been redeemed shall be canceled by the Bond Registrar and shall not be reissued.

(3) Additional Notice. In addition to the foregoing notice, further notice may be given by the District as set out below, but no defect in said further notice nor any failure to give all or any portion of such further notice shall in any manner defeat the effectiveness of a call for redemption if notice thereof is given as above prescribed. Each further notice of redemption given hereunder shall contain the information required above for an official notice of redemption plus (A) the CUSIP numbers of all Bonds being redeemed; (B) the date of issue of the Bonds as originally issued; (C) the rate of interest, if any, borne by each Bond being redeemed; (D) the maturity date of each Bond being redeemed; and (E) any other descriptive information needed to identify accurately the Bonds being redeemed. Each further notice of redemption may be sent at least 20 days before the redemption date to each party entitled to receive notice under the Continuing Disclosure Certificate and to the Underwriters, and to such persons and with such additional information as a Designated Representative shall deem appropriate, but such mailings shall not be a condition precedent to the redemption of such Bonds.

(4) CUSIP Number. Upon the payment of the redemption price of Bonds being redeemed, each check or other transfer of funds issued for such purpose shall bear the CUSIP number identifying, by issue and maturity, the Bonds being redeemed with the proceeds of such check or other transfer.

(5) Amendment of Notice Provisions. The foregoing notice provisions of this Section 4, including but not limited to the information to be included in redemption notices and the persons designated to receive notices, may be amended by additions, deletions and changes in order to maintain compliance with duly promulgated regulations and recommendations regarding

notices of redemption of municipal securities.

Section 5. Form of Bonds.

The Bonds shall be in substantially the form set forth in Exhibit A attached hereto, which is incorporated herein by this reference.

Section 6. Execution of Bonds.

The Bonds shall be executed on behalf of the District with the facsimile or manual signatures of the President and Secretary of its Board. In case either or both of the officers who have signed or attested any of the Bonds cease to be such officer before such Bonds have been actually issued and delivered, such Bonds shall be valid nevertheless and may be issued by the District with the same effect as though the persons who had signed or attested such Bonds had not ceased to be such officers, and any Bond may be signed or attested on behalf of the District by officers who at the date of actual execution of such Bond are the proper officers, although at the nominal date of execution of such Bond such officer was not an officer of the District.

Only Bonds that bear a Certificate of Authentication in the form set forth in Exhibit A, manually executed by the Bond Registrar, shall be valid or obligatory for any purpose or entitled to the benefits of this resolution. Such Certificate of Authentication shall be conclusive evidence that the Bonds so authenticated have been duly executed, authenticated and delivered and are entitled to the benefits of this resolution.

Section 7. Lost or Destroyed Bonds.

If any Bonds are lost, stolen or destroyed, the Bond Registrar may authenticate and deliver a new Bond or Bonds of like amount, maturity and tenor to the Registered Owner upon the owner's paying the expenses and charges of the Bond Registrar and the District in connection with preparation and authentication of the replacement Bond or Bonds and upon his or her filing with the Bond Registrar and the District evidence satisfactory to both that such Bond or Bonds were

actually lost, stolen or destroyed and of his or her ownership, and upon furnishing the District and the Bond Registrar with indemnity satisfactory to both.

Section 8. Pledge of Taxes and Credit.

No later than the date each payment of principal of or interest on the Bonds becomes due, the District shall transmit sufficient funds, from the Debt Service Fund or from other legally available sources, to the Bond Registrar for the payment of such principal or interest. Money in the Debt Service Fund may be invested in legal investments for District funds, but only to the extent that the same are acquired, valued and disposed of at Fair Market Value. Any interest or profit from the investment of such money shall be deposited in the Debt Service Fund.

The District hereby irrevocably covenants that, unless the principal of and interest on the Bonds are paid from other sources, it will make annual levies of taxes without limitation as to rate or amount upon all of the property in the District subject to taxation in amounts sufficient to pay such principal and interest as the same shall become due and will pay the same into the Debt Service Fund. The full faith, credit and resources of the District are hereby irrevocably pledged for the annual levy and collection of such taxes and for the prompt payment of such principal and interest.

Section 9. Defeasance.

In the event that the District, in order to effect the payment, retirement or redemption of any Bond, sets aside in the Debt Service Fund or in another special account, cash or noncallable Government Obligations, or any combination of cash and/or noncallable Government Obligations, in amounts and maturities which, together with the known earned income therefrom, are sufficient to redeem or pay and retire such Bond in accordance with its terms and to pay when due the interest and redemption premium, if any, thereon, and such cash and/or noncallable Government

Obligations are irrevocably set aside and pledged for such purpose, then no further payments need be made into the Debt Service Fund for the payment of the principal of and interest on such Bond. The owner of a Bond so provided for shall cease to be entitled to any lien, benefit or security of this resolution except the right to receive payment of principal, premium, if any, and interest from the Debt Service Fund or such special account, and such Bond shall be deemed to be not outstanding under this resolution. The District shall give notice of defeasance of the Bonds in accordance with the Continuing Disclosure Certificate.

Section 10. Tax Covenants.

The District will take all actions necessary to assure the exclusion of interest on the Bonds from the gross income of the owners of the Bonds to the same extent as such interest is permitted to be excluded from gross income under the Code as in effect on the date of issuance of the Bonds, including but not limited to the following:

(a) *Private Activity Bond Limitation*. The District will assure that the proceeds of the Bonds are not so used as to cause the Bonds to satisfy the private business tests of Section 141(b) of the Code or the private loan financing test of Section 141(c) of the Code.

(b) *Limitations on Disposition of Projects*. The District will not sell or otherwise transfer or dispose of (i) any personal property components of the Projects other than in the ordinary course of an established government program under Treasury Regulation § 1.141-2(d)(4) or (ii) any real property components of the Projects, unless it has received an opinion of nationally recognized bond counsel to the effect that such disposition will not adversely affect the treatment of interest on the Bonds as excludable from gross income for federal income tax purposes.

(c) *Federal Guarantee Prohibition.* The District will not take any action or permit or suffer any action to be taken if the result of such action would be to cause any of the Bonds to be "federally guaranteed" within the meaning of Section 149(b) of the Code.

(d) *Rebate Requirement*. The District will take any and all actions necessary to assure compliance with Section 148(f) of the Code, relating to the rebate of excess investment earnings, if any, to the federal government, to the extent that such section is applicable to the Bonds.

(e) *No Arbitrage*. The District will not take, or permit or suffer to be taken, any action with respect to the proceeds of the Bonds which, if such action had been reasonably expected to have been taken, or had been deliberately and intentionally taken, on the date of issuance of the Bonds would have caused the Bonds to be "arbitrage bonds" within the meaning of Section 148 of the Code.

(f) *Registration Covenant*. The District will maintain a system for recording the ownership of each Bond that complies with the provisions of Section 149 of the Code until all Bonds have been surrendered and canceled.

(g) *Record Retention*. The District will retain its records of all accounting and monitoring it carries out with respect to the Bonds for at least three years after the Bonds mature or are redeemed (whichever is earlier); however, if the Bonds are redeemed and refunded, the District will retain its records of accounting and monitoring at least three years after the earlier of the maturity or redemption of the obligations that refunded the Bonds.

(h) *Compliance with Federal Tax Certificate*. The District will comply with the provisions of the Federal Tax Certificate with respect to the Bonds, which are incorporated herein as if fully set forth herein. In the event of any conflict between this Section and the Federal Tax Certificate, the provisions of the Federal Tax Certificate will prevail.

(i) *No Designation under Section 265(b)*. The District has not designated the Bonds as "qualified tax-exempt obligations" for the purposes of paragraph (3) of Section 265(b) of the Code for banks, thrift institutions and other financial institutions.

The covenants of this Section will survive payment in full or defeasance of the Bonds.

Section 11. Sale of the Bonds; Delegation.

(a) *Delegation*. The Bonds shall be sold by negotiated sale to the Underwriters pursuant to the terms of the Purchase Contract. The Board has determined that it would be in the best interest of the District to delegate for a limited time to the Designated Representatives, in consultation with the Financial Advisor, the authority to select additional Underwriter(s), if any, for the Bonds and to approve the final interest rates, maturity dates, aggregate principal amount, terms of redemption and redemption rights and principal amounts of each maturity of the Bonds.

Each Designated Representative is hereby authorized to select additional Underwriters, if any. The final interest rates, maturity dates, aggregate principal amount, principal maturities, terms of redemption and redemption rights for the Bonds shall be approved by a Designated Representative, in consultation with the Financial Advisor, and shall be set forth in the Purchase Contract, so long as: (i) the aggregate principal amount of the Bonds (excluding any original issue premium or discount) does not exceed $93,000,000, (ii) the final maturity of the Bonds is no later than twenty-one (21) years from the Issue Date, (iii) the aggregate purchase price for the Bonds shall not be more than 140% of the aggregate stated principal amount of the Bonds, (iv) the true interest cost for the Bonds (in the aggregate) does not exceed 5.50%, and (v) the Bonds conform to all other terms of this resolution.

(b) *Bond Sale; Purchase Contract*. Subject to the terms and conditions set forth in this Section 11, each Designated Representative is hereby authorized to execute the final form of the

Purchase Contract. Following the execution of the Purchase Contract, a Designated Representative shall provide a report to the Board, describing the final terms of the Bonds approved pursuant to the authority delegated in this section. The report will be provided to the Board electronically on the date of the Bond sale and a public report provided to the Board at the next regularly scheduled meeting.

The authority granted to the Designated Representatives by this Section 11 shall expire on June 30, 2021. If a Purchase Contract for Bonds has not been executed on or prior to June 30, 2021, the authorization for the issuance of those Bonds shall be rescinded, and any remaining portion of the Bonds authorized under this resolution shall not be issued nor their sale approved unless such Bonds shall have been re-authorized by resolution of the Board. The resolution re-authorizing the issuance and sale of such Bonds may be in the form of a new resolution repealing this resolution in whole or in part (only with respect to the Bonds not issued) or may be in the form of an amendatory resolution approving a purchase contract or establishing terms and conditions for the authority delegated under this Section 11.

The proper officials of the District are hereby authorized and directed to do everything necessary for the prompt execution and delivery of the Bonds to the purchaser at such sale and for the proper application and use of the proceeds of sale thereof.

(c) *Preliminary and Final Official Statements*. Each Designated Representative is hereby authorized to deem final the preliminary Official Statement relating to the Bonds for the purposes of the Rule. Each Designated Representative is further authorized to approve for purposes of the Rule, on behalf of the District, the final Official Statement relating to the issuance and sale of the Bonds and the distribution of the final Official Statement pursuant thereto with such changes, if any, as may be deemed by him or her to be appropriate.

Section 12. Application of Bond Proceeds.

From the money derived from the sale of the Bonds:

(a) Net premium (premium minus costs of issuance) shall be deposited in the Debt Service Fund and/or the Capital Projects Fund and used to pay debt service on the Bonds coming due on the next upcoming interest payment dates, costs of issuing and selling the Bonds, and/or costs of the Projects, respectively; and

(b) The balance of the proceeds of the Bonds shall be deposited in the Capital Projects Fund and shall be used solely to pay the allocable cost of issuing and selling the Bonds and to finance costs of the Projects.

None of the proceeds of the Bonds shall be used for the replacement of equipment or for other than a capital purpose.

Proceeds of the Bonds may be invested by the Treasurer in any legal investment for funds of school districts in the State, but only to the extent that the same are acquired, valued and disposed of at Fair Market Value.

Section 13. Undertaking to Provide Ongoing Disclosure.

The District covenants to execute and deliver at the time of Closing a Continuing Disclosure Certificate to evidence the District's written undertaking to comply with the requirements of the Rule. Each Designated Representative is hereby authorized to execute and deliver a Continuing Disclosure Certificate upon the issuance, delivery and sale of the Bonds with such terms and provisions as such officer shall deem appropriate and in the best interest of the District.

Section 14. Credit Enhancement Program.

The Board by the Election Resolution has requested that the State Treasurer issue a certificate of eligibility in favor of the District for participation by the District in the Credit

Enhancement Program with respect to the Bonds, and has authorized and directed the Superintendent to submit such applications, resolutions and certifications as shall be required by the State Treasurer in review of the District's request for participation. The State Treasurer has issued or is expected to issue a preliminary certificate of eligibility in favor of the District for participation by the District in the Credit Enhancement Program with respect to the Bonds.

Section 15. General Authorization and Ratification.

The President and Secretary of the Board and other appropriate officers of the District are authorized to take any actions and to execute documents as in their judgment may be necessary or desirable in order to carry out the terms of, and complete the transactions contemplated by, this resolution. All acts taken pursuant to the authority of this resolution but prior to its effective date are hereby ratified.

Section 16. Severability.

If any provision in this resolution is declared by any court of competent jurisdiction to be contrary to law, then such provision shall be null and void and shall be deemed separable from the remaining provisions of this resolution and shall in no way affect the validity of the other provisions of this resolution or of the Bonds.

Section 17. Effective Date.

This resolution shall become effective immediately upon its adoption.

ADOPTED by the Board of Directors of Vancouver School District No. 37, Clark County, Washington, at a regular meeting thereof held this 12th day of January, 2021.

VANCOUVER SCHOOL DISTRICT
NO. 37, CLARK COUNTY,
WASHINGTON

_____

President and Director

_____
Director

_____
Director

_____
Director

_____
Director

ATTEST:

_____
Secretary, Board of Directors

EXHIBIT A

FORM OF BONDS

WASHINGTON STATE SCHOOL DISTRICT CREDIT ENHANCEMENT PROGRAM

Payment of principal of and interest on this bond, when due, is guaranteed by the full faith, credit and taxing power of the STATE OF WASHINGTON *under the provisions of the Washington State School District Credit Enhancement Program.*

UNITED STATES OF AMERICA

NO. ____ $_____

STATE OF WASHINGTON

VANCOUVER SCHOOL DISTRICT NO. 37,
CLARK COUNTY

UNLIMITED TAX GENERAL OBLIGATION BOND, 2021

INTEREST RATE: MATURITY DATE: CUSIP NO.:

REGISTERED OWNER: CEDE & Co.

PRINCIPAL AMOUNT:

Vancouver School District No. 37, Clark County, Washington (the "District"), hereby acknowledges itself to owe and for value received promises to pay to the Registered Owner identified above, or registered assigns, on the Maturity Date identified above, the Principal Amount indicated above and to pay interest thereon from _____ ___, 2021, or the most recent date to which interest has been paid or duly provided for until payment of this bond at the Interest Rate set forth above, payable on [December 1, 2021], and semiannually thereafter on the first days of each succeeding [June and December]. Both principal of and interest on this bond are payable in lawful money of the United States of America. For so long as the bonds of this issue are held in fully immobilized form, payments of principal and interest thereon shall be made as provided in accordance with the operational arrangements of The Depository Trust Company ("DTC") referred to in the Blanket Issuer Letter of Representations (the "Letter of Representations") from the District to DTC. The fiscal agency of the State of Washington is acting as the registrar, authenticating agent and paying agent for the bonds of this issue (the "Bond Registrar").

This bond is one of an authorized issue of bonds of like date and tenor, except as to number, amount, rate of interest, redemption provisions and date of maturity, in the aggregate principal amount of $_____, and is issued pursuant to Resolution No. [___] (the "Bond Resolution") adopted by the Board of Directors of the District (the "Board") on January 12, 2021, to provide funds to construct, equip, renovate and make other capital improvements to facilities of the District

as authorized by resolution of the Board and approved by the qualified electors of the District at a special election held therein on February 14, 2017. Capitalized terms used in this bond and not otherwise defined shall have the meanings given them in the Bond Resolution.

The bonds of this issue are subject to redemption prior to their stated maturities as provided in the Purchase Contract.

The bonds of this issue are not "private activity bonds" as such term is defined in the Internal Revenue Code of 1986, as amended (the "Code"). The District has not designated the bonds of this issue as "qualified tax-exempt obligations" under Section 265(b) of the Code for investment by banks, thrift institutions and other financial institutions.

The District has irrevocably covenanted that, unless the principal of and interest on the Bonds are paid from other sources, it will make annual levies of taxes without limitation as to rate or amount upon all of the property in the District subject to taxation in amounts sufficient to pay the principal of and interest on the bonds of this issue as the same shall become due. The full faith, credit and resources of the District are hereby irrevocably pledged for the annual levy and collection of such taxes and the prompt payment of such principal and interest. The pledge of tax levies may be discharged prior to maturity of the bonds by making provision for the payment thereof on the terms and conditions set forth in the Bond Resolution authorizing their issuance.

This bond shall not be valid or become obligatory for any purpose or be entitled to any security or benefit under the Bond Resolution until the Certificate of Authentication hereon shall have been manually signed by or on behalf of the Bond Registrar.

It is hereby certified that all acts, conditions and things required by the Constitution and statutes of the State of Washington to exist, to have happened, been done and performed precedent to and in the issuance of this bond have happened, been done and performed and that the issuance of this bond and the bonds of this issue does not violate any constitutional, statutory or other limitation upon the amount of bonded indebtedness that the District may incur.

IN WITNESS WHEREOF, Vancouver School District No. 37, Clark County, Washington has caused this bond to be executed by the manual or facsimile signatures of the President and Secretary of its Board of Directors [and the seal of the District to be impressed or imprinted hereon] as of this ___ day of _____, 2021.

VANCOUVER SCHOOL DISTRICT NO. 37,
CLARK COUNTY, WASHINGTON

By_____/s/ manual or facsimile_____
President, Board of Directors

ATTEST:

_____/s/ manual or facsimile_____
Secretary, Board of Directors

The Bond Registrar's Certificate of Authentication on the Bonds shall be in substantially the following form:

DATE OF AUTHENTICATION: _____

CERTIFICATE OF AUTHENTICATION

This bond is one of the Unlimited Tax General Obligation Bonds, 2021 of the District, dated _____ _____, 2021, as described in the Bond Resolution.

WASHINGTON STATE FISCAL
AGENCY as Bond Registrar

By_____
Authorized Signatory

CERTIFICATE

I, the undersigned, Secretary of the Board of Directors of Vancouver School District No. 37, Clark County, Washington (the "District"), and keeper of the records of the Board of Directors (the "Board"), DO HEREBY CERTIFY:

1. That the attached resolution is a true and correct copy of Resolution No. [___] of the Board (the "Resolution"), duly passed at a regular meeting thereof held on the 12th day of January, 2021.

2. That said meeting was duly convened and held in all respects in accordance with law, including but not limited to Washington State Governor Inslee's emergency proclamation No. 20-28 issued on March 24, 2020, as amended and supplemented, temporarily suspending portions of the Open Public Meetings Act (chapter 42.30 RCW), and to the extent required by law, due and proper notice of such meeting was given; that a legal quorum was present throughout the meeting and a legally sufficient number of members of the Board voted in the proper manner for the passage of said Resolution; that all other requirements and proceedings incident to the proper passage of said Resolution have been duly fulfilled, carried out and otherwise observed; and that I am authorized to execute this certificate.

IN WITNESS WHEREOF, I have hereunto set my hand this 12th day of January, 2021.

_____

Secretary, Board of Directors